

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

-----X  
KYLE NIEUENKIRK, SHANIYA MORRIS and  
SHANE JOYNER FOXWORTH,

Plaintiffs,

-against-

THE CITY OF NEW YORK, POLICE DETECTIVE  
PAUL MALLILO-Shield # 564, POLICE OFFICER  
ESSENCE A. JACKSON-Shield # 2268, POLICE  
OFFICER SHANTE L. TERRELL-Shield # 4424 and  
JOHN DOES-Police Officers as yet unidentified,

Defendants.

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**TO THE ABOVE NAMED DEFENDANT:**

**YOU ARE HEREBY SUMMONED** to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

**Defendant's address:**

THE CITY OF NEW YORK  
100 Church Street  
New York, New York 10007

POLICE DETECTIVE PAUL MALLILO-Shield  
# 564  
c/o New York City Police Department- 63<sup>rd</sup>  
Precinct  
1844 Brooklyn Avenue  
Brooklyn, New York 11210

POLICE OFFICER ESSENCE A. JACKSON-  
Shield # 2268  
c/o Narcotics Borough Brooklyn South  
2820 Snyder Avenue, 3<sup>rd</sup> Floor  
Brooklyn, New York 11226

Index #

Date of filing:

Plaintiffs designate Kings  
County as the place of trial

Basis of the venue is the Locus  
of Occurrence

**SUMMONS**

Plaintiff, KYLE NIEUENKIRK,  
resides at  
197 Chauncey Street  
Brooklyn, New York 11233

County of Kings

**Plaintiff's attorneys:**

RUBENSTEIN & RYNECKI, ESQS.  
16 Court Street, Suite 1717  
Brooklyn, New York 11241  
(718)522-1020

**Defendant's address:**  
POLICE OFFICER SHANTE L. TERRELL-  
Shield # 4424  
c/o Narcotics Borough Brooklyn South  
2820 Snyder Avenue, 3<sup>rd</sup> Floor  
Brooklyn, New York 11226

Dated: Brooklyn, New York  
August 9, 2021

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS-----X  
KYLE NIEUENKIRK, SHANIYA MORRIS and  
SHANE JOYNER FOXWORTH,

Index No.:

COMPLAINT

Plaintiffs,

-against-

THE CITY OF NEW YORK, POLICE DETECTIVE  
PAUL MALLILO-Shield # 564, POLICE OFFICER  
ESSENCE A. JACKSON-Shield # 2268, POLICE  
OFFICER SHANTE L. TERRELL-Shield # 4424 and  
JOHN DOES-Police Officers as yet unidentified,

Defendants.

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Plaintiffs, by their attorneys, RUBENSTEIN & RYNECKI, ESQS., complaining of the defendants herein, upon information and belief, respectfully show to this Court, and allege as follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR ASSAULT  
AND BATTERY ON BEHALF OF KYLE NIEUENKIRK**

1. That at all times hereinafter mentioned, the plaintiff, KYLE NIEUENKIRK, was and still is a resident of the County of Kings, City and State of New York.
2. That at all times hereinafter mentioned, the plaintiff, SHANIYA MORRIS, was and still is a resident of the County of Kings, City and State of New York.
3. That at all times hereinafter mentioned, the plaintiff, SHANE JOYNER FOXWORTH, was and still is a resident of the County of Kings, City and State of New York.
4. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.
5. That the defendant, THE CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.
6. That prior hereto on November 6, 2020, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries

and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, was served and that thereafter THE CITY OF NEW YORK, refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

7. Pursuant to the General Municipal Law, the Statutory 50-H Hearing of the plaintiff was held on March 18, 2021.

8. That on September 7, 2020, and at all times hereinafter mentioned and upon information and belief, the defendant, THE CITY OF NEW YORK, employed POLICE DETECTIVE PAUL MALLILO-Shield # 564, POLICE OFFICER ESSENCE A. JACKSON-Shield # 2268, POLICE OFFICER SHANTE L. TERRELL-Shield # 4424 and JOHN DOES-Police Officers as yet unidentified, as police officers, agents, servants and/or employees.

9. That on September 7, 2020, and at all times hereinafter mentioned and upon information and belief, the plaintiff, KYLE NIEUENKIRK, was lawfully present at or about the intersection of President Street and Franklin Avenue, in the County of Kings, City and State of New York.

10. That on September 7, 2020, and at all times hereinafter mentioned and upon information and belief, while at the aforementioned location, the plaintiff, KYLE NIEUENKIRK, was approached and was assaulted and battered by the defendants, POLICE DETECTIVE PAUL MALLILO-Shield # 564, POLICE OFFICER ESSENCE A. JACKSON-Shield # 2268, POLICE OFFICER SHANTE L. TERRELL-Shield # 4424 and JOHN DOES-Police Officers as yet unidentified. The assault and battery consisted of being grabbed and dragged out of his vehicle, punched repeatedly with fists and flashlights, maced, pinned against a motor vehicle, struck with elbows was forcefully placed in handcuffs. While in handcuffs, the plaintiff was thrown in a police vehicle where he was assaulted and battered once again by the defendant police officers. Thereafter, the plaintiff was taken to the 71<sup>st</sup> Precinct and was placed in a holding cell. During his confinement, the plaintiff was threatened by the defendant, POLICE OFFICER SHANTE L. TERRELL-Shield # 4424, with the punishment of the other plaintiffs involved if he sought

medical attention for injuries sustained as a result of the aforementioned incident. The plaintiff was transported to Kings County Central Booking where he was released at approximately 2:00 P.M., on September 8, 2020.

11. That on September 7, 2020, and at all times hereinafter mentioned and upon information and belief, plaintiff, KYLE NIEUENKIRK, was assaulted and battered by defendants, POLICE DETECTIVE PAUL MALLILO-Shield # 564, POLICE OFFICER ESSENCE A. JACKSON-Shield # 2268, POLICE OFFICER SHANTE L. TERRELL-Shield # 4424 and JOHN DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid location.

12. That on September 7, 2020, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

13. That on September 7, 2020, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE DETECTIVE PAUL MALLILO-Shield # 564, POLICE OFFICER ESSENCE A. JACKSON-Shield # 2268, POLICE OFFICER SHANTE L. TERRELL-Shield # 4424 and JOHN DOES-Police Officers as yet unidentified, who committed the aforementioned assault and battery upon the plaintiff, KYLE NIEUENKIRK, were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

14. That on September 7, 2020, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

15. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

16. By the reason of the foregoing, the plaintiff, KYLE NIEUENKIRK, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT  
HIRING AND RETENTION ON BEHALF OF KYLE NIEUENKIRK**

17. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "16" inclusive with the same force and effect as if more fully set forth at length herein.

18. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their police officers, agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE DETECTIVE PAUL MALLILO-Shield # 564, POLICE OFFICER ESSENCE A. JACKSON-Shield # 2268, POLICE OFFICER SHANTE L. TERRELL-Shield # 4424 and JOHN DOES-Police Officers as yet unidentified, who assaulted, battered and violated the civil rights of the plaintiff, KYLE NIEUENKIRK.

19. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE DETECTIVE PAUL MALLILO-Shield # 564, POLICE OFFICER ESSENCE A. JACKSON-Shield # 2268, POLICE OFFICER SHANTE L. TERRELL-Shield # 4424 and JOHN DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

20. By the reason of the foregoing, the plaintiff, KYLE NIEUENKIRK, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR FALSE  
ARREST ON BEHALF OF KYLE NIEUENKIRK**

21. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "20" inclusive with the same force and effect as if more fully set forth at length herein.

22. That on September 7, 2020 , and at all times hereinafter mentioned and upon information and belief, defendants, POLICE DETECTIVE PAUL MALLILO-Shield # 564,

POLICE OFFICER ESSENCE A. JACKSON-Shield # 2268, POLICE OFFICER SHANTE L. TERRELL-Shield # 4424 and JOHN DOES-Police Officers as yet unidentified, were working within the scope of their employment and authority with the defendant, THE CITY OF NEW YORK, when they arrested and confined the plaintiff, KYLE NIEUENKIRK.

23. That on September 7, 2020, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

24. That as a result of the aforesaid false arrest and confinement, the plaintiff, KYLE NIEUENKIRK, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress, emotional distress and injuries.

25. By the reason of the foregoing, the plaintiff, KYLE NIEUENKIRK, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR FALSE  
IMPRISONMENT ON BEHALF OF KYLE NIEUENKIRK**

26. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "25" inclusive with the same force and effect as if more fully set forth at length herein.

27. That on September 7, 2020 , and at all times hereinafter mentioned and upon information and belief, defendants, POLICE DETECTIVE PAUL MALLILO-Shield # 564, POLICE OFFICER ESSENCE A. JACKSON-Shield # 2268, POLICE OFFICER SHANTE L. TERRELL-Shield # 4424 and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff, KYLE NIEUENKIRK.

28. That the defendants, POLICE DETECTIVE PAUL MALLILO-Shield # 564, POLICE OFFICER ESSENCE A. JACKSON-Shield # 2268, POLICE OFFICER SHANTE L.

TERRELL-Shield # 4424 and JOHN DOES-Police Officers as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff, KYLE NIEUENKIRK, against his will and said confinement was not privileged.

29. By the reason of the foregoing, the plaintiff, KYLE NIEUENKIRK, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR INTENTIONAL  
AND NEGLIGENT INFLICTION OF EMOTIONAL  
DISTRESS ON BEHALF OF KYLE NIEUENKIRK**

30. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "29" inclusive with the same force and effect as if more fully set forth at length herein.

31. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE DETECTIVE PAUL MALLILO-Shield # 564, POLICE OFFICER ESSENCE A. JACKSON-Shield # 2268, POLICE OFFICER SHANTE L. TERRELL-Shield # 4424 and JOHN DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

32. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, KYLE NIEUENKIRK.

33. That as a result of said intentional and negligent acts, the plaintiff, KYLE NIEUENKIRK, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

34. By reason of the foregoing, the plaintiff, KYLE NIEUENKIRK, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.



**AS AND FOR A SIXTH CAUSE OF ACTION FOR MALICIOUS  
PROSECUTION ON BEHALF OF KYLE NIEUENKIRK**

35. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "34" inclusive with the same force and effect as if more fully set forth at length herein.

36. That on September 7, 2020, and at all times hereinafter mentioned and upon information and belief, defendants POLICE DETECTIVE PAUL MALLILO-Shield # 564, POLICE OFFICER ESSENCE A. JACKSON-Shield # 2268, POLICE OFFICER SHANTE L. TERRELL-Shield # 4424 and JOHN DOES-Police Officers as yet unidentified, within the scope of their employment, without justification, without probable cause, created and submitted an erroneous police report in an effort to cover up the aforesaid and initiate a prosecution in bad faith.

37. That on September 7, 2020, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE DETECTIVE PAUL MALLILO-Shield # 564, POLICE OFFICER ESSENCE A. JACKSON-Shield # 2268, POLICE OFFICER SHANTE L. TERRELL-Shield # 4424 and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment, maliciously prosecuted the plaintiff, KYLE NIEUENKIRK.

38. That on September 7, 2020, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of employment opportunities and suffered emotional and physical distress and injury.

39. By reason of the foregoing, plaintiff, KYLE NIEUENKIRK, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR CIVIL  
RIGHTS VIOLATION ON BEHALF OF KYLE NIEUENKIRK**

40. The plaintiff repeats and realleges each and every allegation set forth above

numbered "1" through "39" inclusive with the same force and effect as if more fully set forth at length herein.

41. The defendant, THE CITY OF NEW YORK, through policies, practices and customs, directly caused the constitutional violation suffered by plaintiff, KYLE NIEUENKIRK.

42. The defendant, THE CITY OF NEW YORK, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to POLICE DETECTIVE PAUL MALLILO-Shield # 564, POLICE OFFICER ESSENCE A. JACKSON-Shield #2268, POLICE OFFICER SHANTE L. TERRELL-Shield # 4424 and JOHN DOES-Police Officers as yet unidentified, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

43. The defendant, THE CITY OF NEW YORK, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

44. The defendant, THE CITY OF NEW YORK, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to POLICE DETECTIVE PAUL MALLILO-Shield # 564, POLICE OFFICER ESSENCE A. JACKSON-Shield #2268, POLICE OFFICER SHANTE L. TERRELL-Shield #4424 and JOHN DOES-Police Officers as yet unidentified, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

45. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendants, including but not limited to POLICE DETECTIVE PAUL MALLILO-Shield # 564, POLICE OFFICER ESSENCE A. JACKSON-Shield # 2268, POLICE OFFICER SHANTE L. TERRELL-Shield # 4424 and JOHN DOES-Police Officers as yet unidentified, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

46. As a direct and proximate result of this unlawful conduct, the plaintiff, KYLE NIEUENKIRK, sustained the damages hereinbefore alleged.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR  
PUNITIVE DAMAGES ON BEHALF OF KYLE NIEUENKIRK**

47. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "46" inclusive with the same force and effect as if more fully set forth at length herein.

48. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

49. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE DETECTIVE PAUL MALLILO-Shield # 564, POLICE OFFICER ESSENCE A. JACKSON-Shield # 2268, POLICE OFFICER SHANTE L. TERRELL-Shield # 4424 and JOHN DOES-Police Officers as yet unidentified, herein-above alleged.

50. By the reason of the foregoing, the plaintiff, KYLE NIEUENKIRK, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A NINTH CAUSE OF ACTION FOR ASSAULT  
AND BATTERY ON BEHALF OF SHANIYA MORRIS**

51. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "50" inclusive with the same force and effect as if more fully set forth at length herein.

52. That prior hereto on November 6, 2020, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, was served and that thereafter THE CITY OF NEW YORK, refused or neglected for more than

(30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

53. Pursuant to the General Municipal Law, the Statutory 50-H Hearing of the plaintiff was held on March 18, 2021.

54. That on September 7, 2020, and at all times hereinafter mentioned and upon information and belief, the plaintiff, SHANIYA MORRIS, was lawfully present at or about the intersection of President Street and Franklin Avenue, in the County of Kings, City and State of New York.

55. That on September 7, 2020, and at all times hereinafter mentioned and upon information and belief, while at the aforementioned location, the plaintiff, SHANIYA MORRIS, who was pregnant, was approached and was assaulted and battered by the defendants, POLICE DETECTIVE PAUL MALLILO-Shield # 564, POLICE OFFICER ESSENCE A. JACKSON-Shield # 2268, POLICE OFFICER SHANTE L. TERRELL-Shield # 4424 and JOHN DOES-Police Officers as yet unidentified. The assault and battery consisted of being grabbed and pulled from a motor vehicle. Thereafter, the plaintiff was punched and pushed causing her to strike against the ground. Defendant police officers denied the plaintiff of medical attention for injuries sustained as a result of the incident occurred at the aforementioned location. Also, several personal items belonging to said plaintiff were confiscated.

56. That on September 7, 2020, and at all times hereinafter mentioned and upon information and belief, plaintiff, SHANIYA MORRIS, was assaulted and battered by defendants, POLICE DETECTIVE PAUL MALLILO-Shield # 564, POLICE OFFICER ESSENCE A. JACKSON-Shield # 2268, POLICE OFFICER SHANTE L. TERRELL-Shield # 4424 and JOHN DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid location

57. That on September 7, 2020, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

58. That on September 7, 2020, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE DETECTIVE PAUL MALLILO-Shield # 564, POLICE OFFICER ESSENCE A. JACKSON-Shield # 2268, POLICE OFFICER SHANTE L. TERRELL-Shield # 4424 and JOHN DOES-Police Officers as yet unidentified, who committed the aforementioned assault and battery upon the plaintiff, SHANIYA MORRIS, were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

59. That on September 7, 2020, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

60. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

61. By the reason of the foregoing, the plaintiff, SHANIYA MORRIS, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A TENTH CAUSE OF ACTION FOR NEGLIGENT  
HIRING AND RETENTION ON BEHALF OF SHANIYA MORRIS**

62. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "61" inclusive with the same force and effect as if more fully set forth at length herein.

63. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their police officers, agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE DETECTIVE PAUL MALLILO-Shield # 564, POLICE OFFICER ESSENCE A. JACKSON-Shield # 2268, POLICE OFFICER SHANTE L. TERRELL-Shield # 4424 and JOHN DOES-Police Officers as yet unidentified, who assaulted, battered and violated the civil rights of the plaintiff, SHANIYA MORRIS.

64. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE DETECTIVE PAUL MALLILO-Shield # 564, POLICE OFFICER ESSENCE A. JACKSON-Shield # 2268, POLICE OFFICER SHANTE L. TERRELL-Shield # 4424 and JOHN DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

65. By the reason of the foregoing, the plaintiff, SHANIYA MORRIS, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR AN ELEVENTH CAUSE OF ACTION FOR  
INTENTIONAL AND NEGLIGENT INFLICTION OF  
EMOTIONAL DISTRESS ON BEHALF OF SHANIYA MORRIS**

66. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "65" inclusive with the same force and effect as if more fully set forth at length herein.

67. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE DETECTIVE PAUL MALLILO-Shield # 564, POLICE OFFICER ESSENCE A. JACKSON-Shield # 2268, POLICE OFFICER SHANTE L. TERRELL-Shield # 4424 and JOHN DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

68. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, SHANIYA MORRIS.

69. That as a result of said intentional and negligent acts, the plaintiff, SHANIYA MORRIS, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of her person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

70. By reason of the foregoing, the plaintiff, SHANIYA MORRIS, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A TWELFTH CAUSE OF ACTION FOR CIVIL  
RIGHTS VIOLATION ON BEHALF OF SHANIYA MORRIS**

71. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "70" inclusive with the same force and effect as if more fully set forth at length herein.

72. The defendant, THE CITY OF NEW YORK, through policies, practices and customs, directly caused the constitutional violation suffered by plaintiff, KYLE NIEUENKIRK.

73. The defendant, THE CITY OF NEW YORK, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to POLICE DETECTIVE PAUL MALLILO-Shield # 564, POLICE OFFICER ESSENCE A. JACKSON-Shield # 2268, POLICE OFFICER SHANTE L. TERRELL-Shield # 4424 and JOHN DOES-Police Officers as yet unidentified, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

74. The defendant, THE CITY OF NEW YORK, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

75. The defendant, THE CITY OF NEW YORK, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to POLICE DETECTIVE PAUL MALLILO-Shield # 564, POLICE OFFICER ESSENCE A. JACKSON-Shield # 2268, POLICE OFFICER SHANTE L. TERRELL-Shield # 4424 and JOHN DOES-Police Officers as yet unidentified, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

76. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendants, including but not limited to POLICE DETECTIVE PAUL

MALLILO-Shield # 564, POLICE OFFICER ESSENCE A. JACKSON-Shield # 2268, POLICE OFFICER SHANTE L. TERRELL-Shield # 4424 and JOHN DOES-Police Officers as yet unidentified, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

77. As a direct and proximate result of this unlawful conduct, the plaintiff, SHANIYA MORRIS , sustained the damages hereinbefore alleged.

**AS AND FOR A THIRTEENTH CAUSE OF ACTION FOR  
PUNITIVE DAMAGES ON BEHALF OF SHANIYA MORRIS**

78. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "77" inclusive with the same force and effect as if more fully set forth at length herein.

79. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

80. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE DETECTIVE PAUL MALLILO-Shield # 564, POLICE OFFICER ESSENCE A. JACKSON-Shield # 2268, POLICE OFFICER SHANTE L. TERRELL-Shield # 4424 and JOHN DOES-Police Officers as yet unidentified, herein-above alleged.

81. By the reason of the foregoing, the plaintiff, SHANIYA MORRIS , sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTEENTH CAUSE OF ACTION FOR ASSAULT  
AND BATTERY ON BEHALF OF SHANE JOYNER FOXWORTH**

82. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "81" inclusive with the same force and effect as if more fully set forth at length herein.



83. That prior hereto on November 6, 2020, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, was served and that thereafter THE CITY OF NEW YORK, refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

84. Pursuant to the General Municipal Law, the Statutory 50-H Hearing of the plaintiff was held on March 18, 2021.

85. That on September 7, 2020, and at all times hereinafter mentioned and upon information and belief, the plaintiff, SHANE JOYNER FOXWORTH, was lawfully present at or about the intersection of President Street and Franklin Avenue, in the County of Kings, City and State of New York.

86. That on September 7, 2020, and at all times hereinafter mentioned and upon information and belief, while at the aforementioned location, the plaintiff, SHANE JOYNER FOXWORTH, was approached and was assaulted and battered by the defendants, POLICE DETECTIVE PAUL MALLILO-Shield # 564, POLICE OFFICER ESSENCE A. JACKSON-Shield # 2268, POLICE OFFICER SHANTE L. TERRELL-Shield # 4424 and JOHN DOES-Police Officers as yet unidentified. The assault and battery consisted of being grabbed from the vehicle and placed in handcuffs. The plaintiff was taken to the 71<sup>st</sup> Precinct where he was held in a holding cell. While at the precinct, the plaintiff was threatened by the defendant, POLICE OFFICER SHANTE L. TERRELL-Shield # 4424. Thereafter, the plaintiff was released from custody without being charged with a crime at approximately 7:30 P.M.

87. That on September 7, 2020, and at all times hereinafter mentioned and upon information and belief, plaintiff, SHANE JOYNER FOXWORTH, was assaulted and battered by defendants, POLICE DETECTIVE PAUL MALLILO-Shield # 564, POLICE OFFICER ESSENCE A. JACKSON-Shield # 2268, POLICE OFFICER SHANTE L. TERRELL-Shield # 4424 and JOHN DOES-Police Officers as yet unidentified, who were acting within the scope of

their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid location.

88. That on September 7, 2020 , and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

89. That on September 7, 2020 , and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE DETECTIVE PAUL MALLILO-Shield # 564, POLICE OFFICER ESSENCE A. JACKSON-Shield # 2268, POLICE OFFICER SHANTE L. TERRELL-Shield # 4424 and JOHN DOES-Police Officers as yet unidentified, who committed the aforementioned assault and battery upon the plaintiff, SHANE JOYNER FOXWORTH, were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

90. That on September 7, 2020, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

91. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

92. By the reason of the foregoing, the plaintiff, SHANE JOYNER FOXWORTH, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTEENTH CAUSE OF ACTION FOR NEGLIGENT  
HIRING AND RETENTION ON BEHALF OF SHANE JOYNER FOXWORTH**

93. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "92" inclusive with the same force and effect as if more fully set forth at length herein.

94. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their police officers, agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE DETECTIVE PAUL MALLILO-Shield # 564, POLICE OFFICER

ESSENCE A. JACKSON-Shield # 2268, POLICE OFFICER SHANTE L. TERRELL-Shield # 4424 and JOHN DOES-Police Officers as yet unidentified, who assaulted, battered and violated the civil rights of the plaintiff, SHANE JOYNER FOXWORTH.

95. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE DETECTIVE PAUL MALLILO-Shield # 564, POLICE OFFICER ESSENCE A. JACKSON-Shield # 2268, POLICE OFFICER SHANTE L. TERRELL-Shield # 4424 and JOHN DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

96. By the reason of the foregoing, the plaintiff, SHANE JOYNER FOXWORTH, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTEENTH CAUSE OF ACTION FOR FALSE  
ARREST ON BEHALF OF SHANE JOYNER FOXWORTH**

97. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "96" inclusive with the same force and effect as if more fully set forth at length herein.

98. That on September 7, 2020, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE DETECTIVE PAUL MALLILO-Shield # 564, POLICE OFFICER ESSENCE A. JACKSON-Shield # 2268, POLICE OFFICER SHANTE L. TERRELL-Shield # 4424 and JOHN DOES-Police Officers as yet unidentified, were working within the scope of their employment and authority with the defendant, THE CITY OF NEW YORK, when they arrested and confined the plaintiff, SHANE JOYNER FOXWORTH.

99. That on September 7, 2020, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

100. That as a result of the aforesaid false arrest and confinement, the plaintiff, SHANE JOYNER FOXWORTH, sustained serious permanent personal injuries along with

humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress, emotional distress and injuries.

101. By the reason of the foregoing, the plaintiff, SHANE JOYNER FOXWORTH, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SEVENTEENTH CAUSE OF ACTION FOR FALSE IMPRISONMENT ON BEHALF OF SHANE JOYNER FOXWORTH**

102. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "101" inclusive with the same force and effect as if more fully set forth at length herein.

103. That on September 7, 2020 , and at all times hereinafter mentioned and upon information and belief, defendants, POLICE DETECTIVE PAUL MALLILO-Shield # 564, POLICE OFFICER ESSENCE A. JACKSON-Shield # 2268, POLICE OFFICER SHANTE L. TERRELL-Shield # 4424 and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff, SHANE JOYNER FOXWORTH.

104. That the defendants, POLICE DETECTIVE PAUL MALLILO-Shield # 564, POLICE OFFICER ESSENCE A. JACKSON-Shield # 2268, POLICE OFFICER SHANTE L. TERRELL-Shield # 4424 and JOHN DOES-Police Officers as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff, SHANE JOYNER FOXWORTH, against his will and said confinement was not privileged.

105. By the reason of the foregoing, the plaintiff, SHANE JOYNER FOXWORTH, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A EIGHTEENTH CAUSE OF ACTION FOR INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS ON BEHALF OF SHANE JOYNER FOXWORTH**

106. The plaintiff repeats and realleges each and every allegation set forth above

numbered "1" through "105" inclusive with the same force and effect as if more fully set forth at length herein.

107. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE DETECTIVE PAUL MALLILO-Shield # 564, POLICE OFFICER ESSENCE A. JACKSON-Shield # 2268, POLICE OFFICER SHANTE L. TERRELL-Shield # 4424 and JOHN DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

108. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, SHANE JOYNER FOXWORTH.

109. That as a result of said intentional and negligent acts, the plaintiff, SHANE JOYNER FOXWORTH, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

110. By reason of the foregoing, the plaintiff, SHANE JOYNER FOXWORTH, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A NINETEENTH CAUSE OF ACTION FOR CIVIL RIGHTS VIOLATION ON BEHALF OF SHANE JOYNER FOXWORTH**

111. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "110" inclusive with the same force and effect as if more fully set forth at length herein.

112. The defendant, THE CITY OF NEW YORK, through policies, practices and customs, directly caused the constitutional violation suffered by plaintiff, SHANE JOYNER FOXWORTH.

113. The defendant, THE CITY OF NEW YORK, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers,

including but not limited to POLICE DETECTIVE PAUL MALLILO-Shield # 564, POLICE OFFICER ESSENCE A. JACKSON-Shield # 2268, POLICE OFFICER SHANTE L. TERRELL-Shield # 4424 and JOHN DOES-Police Officers as yet unidentified, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

114. The defendant, THE CITY OF NEW YORK, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

115. The defendant, THE CITY OF NEW YORK, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to POLICE DETECTIVE PAUL MALLILO-Shield # 564, POLICE OFFICER ESSENCE A. JACKSON-Shield # 2268, POLICE OFFICER SHANTE L. TERRELL-Shield # 4424 and JOHN DOES-Police Officers as yet unidentified, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

116. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendants, including but not limited to POLICE DETECTIVE PAUL MALLILO-Shield # 564, POLICE OFFICER ESSENCE A. JACKSON-Shield # 2268, POLICE OFFICER SHANTE L. TERRELL-Shield # 4424 and JOHN DOES-Police Officers as yet unidentified, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

117. As a direct and proximate result of this unlawful conduct, the plaintiff, SHANE JOYNER FOXWORTH, sustained the damages hereinbefore alleged.

**AS AND FOR AN TWENTIETH CAUSE OF ACTION FOR PUNITIVE DAMAGES ON BEHALF OF SHANE JOYNER FOXWORTH**

118. The plaintiff repeats and realleges each and every allegation set forth above

numbered "1" through "117" inclusive with the same force and effect as if more fully set forth at length herein.

119. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

120. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE DETECTIVE PAUL MALLILO-Shield # 564, POLICE OFFICER ESSENCE A. JACKSON-Shield # 2268, POLICE OFFICER SHANTE L. TERRELL-Shield # 4424 and JOHN DOES-Police Officers as yet unidentified, herein-above alleged.

121. By the reason of the foregoing, the plaintiff, SHANE JOYNER FOXWORTH, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**WHEREFORE**, plaintiff, KYLE NIEUENKIRK, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiff, KYLE NIEUENKIRK, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, KYLE NIEUENKIRK, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, plaintiff, KYLE NIEUENKIRK, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, KYLE NIEUENKIRK, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; plaintiff, KYLE NIEUENKIRK, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixth** Cause of Action; plaintiff, KYLE NIEUENKIRK, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Seventh** Cause of Action; plaintiff, KYLE NIEUENKIRK, demands judgment both

compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Eighth** Cause of Action; plaintiff, SHANIYA MORRIS, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Ninth** Cause of Action; plaintiff, SHANIYA MORRIS, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Tenth** Cause of Action; plaintiff, SHANIYA MORRIS, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Eleventh** Cause of Action; plaintiff, plaintiff, SHANIYA MORRIS, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Twelfth** Cause of Action; plaintiff, SHANIYA MORRIS, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Thirteenth** Cause of Action; plaintiff, SHANE JOYNER FOXWORTH, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourteenth** Cause of Action; plaintiff, SHANE JOYNER FOXWORTH, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifteenth** Cause of Action; plaintiff, SHANE JOYNER FOXWORTH, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixteenth** Cause of Action; plaintiff, SHANE JOYNER FOXWORTH, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Seventeenth** Cause of Action; plaintiff, plaintiff, SHANE JOYNER FOXWORTH, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Eighteenth** Cause of Action; plaintiff, SHANE JOYNER FOXWORTH, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Nineteenth** Cause of Action; plaintiff, SHANE JOYNER FOXWORTH, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of



all lower Courts on the **Twentieth** Cause of Action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York  
August 9, 2021

Yours, etc.,



\_\_\_\_\_  
ROBERT MIJUCA, ESQ.  
RUBENSTEIN & RYNECKI, ESQS.  
Attorneys for Plaintiffs  
KYLE NIEUENKIRK  
SHANIYA MORRIS  
SHANE JOYNER FOXWORTH  
16 Court Street-Suite 1717  
Brooklyn, New York 11241  
(718) 522-1020  
File No.: 20KN09-07

INDIVIDUAL VERIFICATION

STATE OF NEW YORK )

) SS:

COUNTY OF KINGS )

KYLE NIEUENKIRK, being duly sworn, deposes and says, that deponent is the plaintiff in the within action; that deponent has read the foregoing COMPLAINT and knows the contents hereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes them to be true.

  
KYLE NIEUENKIRK

Sworn to before me this 10<sup>th</sup>  
of August 2021

  
NOTARY PUBLIC

MAGDA MARIN-COLON  
Notary Public, State of New York  
No. 01MA6158891  
Qualified in Richmond County  
Commission Expires 1-16-2023

INDIVIDUAL VERIFICATION

STATE OF NEW YORK )

) SS:

COUNTY OF KINGS )

SHANE JOYNER FOXWORTH, being duly sworn, deposes and says, that deponent is the plaintiff in the within action; that deponent has read the foregoing COMPLAINT and knows the contents hereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes them to be true.

  
SHANE JOYNER FOXWORTH

Sworn to before me this 10<sup>th</sup>  
of August 2021

  
NOTARY PUBLIC

MAGDA MARIN-COLON  
Notary Public, State of New York  
No. 01MA6158891  
Qualified in Richmond County  
Commission Expires 1-16-2023

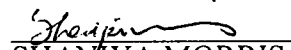
INDIVIDUAL VERIFICATION

STATE OF NEW YORK )

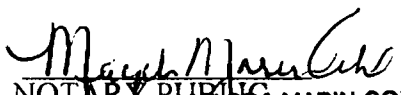
) SS:

COUNTY OF KINGS )

SHANIYA MORRIS, being duly sworn, deposes and says, that deponent is the plaintiff in the within action; that deponent has read the foregoing COMPLAINT and knows the contents hereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes them to be true.

  
SHANIYA MORRIS

Sworn to before me this 10<sup>th</sup>  
of August 2021

  
NOTARY PUBLIC  
MARISA MARIN-COLON  
Notary Public, State of New York  
No. 01MA6158891  
Qualified in Richmond County  
Commission Expires 1-16-20 23